

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331 of the Code of Criminal
Procedure Act No.15 of 1979.

Court of Appeal No:
CA/HCC/0235/2025
High Court of Embilipitiya
Case No: HCE/45/2020

Kodithuwakku Arachchilage
Wasantha alias Alibaby

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Neranjana Jayasinghe with Randunu Helleage
and Pravindika Kularatne for the Appellant.**
**Dileepa Peiris, PC, ASG for the
Respondent.**

ARGUED ON : **03/07/2026**

DECIDED ON : **18/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) with another person (2nd Accused) were indicted for committing the murder of Mahapurana Ganithayalage Amila Pradeep Pushpakumara on 28/02/2012 which is an offence punishable under Section 296 of the Penal Code read with Section 32 of the Penal Code.

After a non-jury trial, the Learned High Court Judge has found the Appellant guilty of the charge and sentenced him to death on 16/07/2025. The other individual, who was named as the 2nd Accused, had been acquitted from the case by the Learned High Court Judge.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. Also, at the time of argument the Appellant was connected via the Zoom platform from prison.

The Appellant has raised the following grounds of appeal:

1. Evidence of the prosecution witnesses fails the test of credibility, and the items of circumstantial evidence are not sufficient to arrive at the one and only inference that the Accused-Appellant was the person who committed the murder.
2. Learned High Court Judge had rejected the evidence of the defence on unreasonable grounds.

Background of the Case

According to PW01 Jayalal, he is a carpenter by profession and was working at the house of the deceased's relative. On the day of the incident, at about 6.30pm, PW1 with the deceased had gone to the house of PW2 to borrow a timber cutting machine. PW2's house is situated on a higher elevation from the house. The deceased had gone to PW2's house and PW1 was waiting on the road with his motor bike. The house was situated at a visible distance from the road, and PW1 could view the house from the road. The deceased had come down after speaking to PW2 for about 5 to 10 minutes. At that time, the Appellant with another person had come in a three-wheeler and stopped near the deceased. PW1 knew the Appellant very well and was able to recognise him, as the Appellant had contested in the election. The Appellant had hit the deceased and dragged him into the three-wheeler and taken him away.

PW2 Renuka Samanthi, also narrated the same as PW1 regarding the deceased coming to her house. Upon inquiry from the deceased, she had replied through the window of her house that she doesn't have a timber cutting machine. After the deceased left her house, she had heard a sound and had seen the Appellant with the deceased. Thereafter, she had seen the Appellant hitting the deceased with a belt and the deceased was seated on a chair. Thereafter, both the Appellant and the 2nd Accused had taken the

deceased towards the road and she had heard a sound of the three-wheeler leaving. She further added that the incident had lasted for about half an hour and the deceased was taken away to be handed over to the police.

The Appellant had had an affair with PW2 and she had delivered a baby girl as a result of this illicit connection. A dispute had arisen between the Appellant and PW2 when the Appellant had refused to give his name as the father of the child. This had ended up in a police complaint and PW2 had then filed a Maintenance Application in the Magistrate Court against the Appellant.

According to PW3, Wasantha Kumara, the Appellant had asked him to go to the Embilipitiya Hospital to check the condition of an individual who was hospitalized there. His observation was that the patient was in a critical condition as there were many people were around him.

According to PW9, Jayasena, between 5 to 5.30 am on the day following the incident, when he came to the road to drop his son to school, he had seen a person lying in the bus halt, who appeared to be drunk. He had not been bothered about the person at that time. However, he had later come to know that the person was taken to the hospital by the police.

PW14, IP/Rathnayake had received information from the OIC of the Godakawala Police Station that he had received an anonymous call about the deceased being found in the bus halt. He had rushed to the scene immediately and taken the deceased to the Embilipitiya Hospital. He had noticed that the deceased's lip and mouth were swollen due to assault. His body was shaking.

PW17, IP/Lasantha had visited the scene and recovered some parts of a belt and pieces of a bottle. A slipper and part of a shirt which was believed to have been thrown away to be burned were also taken into custody. He had arrested the Appellant and the 2nd Accused after he received the telephone message from the Ratnapura Hospital regarding the demise of the deceased.

PW13, JMO Dissanayake had performed the postmortem examination of the deceased. He had noticed 32 bruises on the deceased body. He is of the opinion that the death was caused due to the injuries caused to the brain. The deceased was first admitted to the Embilipitiya Hospital on 28.02.2012. He was transferred to the Colombo General Hospital thereafter. After treatment the deceased was transferred to the Ratnapura District Hospital and the deceased had passed away there on 09.03.2012 after 11 days of the incident.

The Appellant in his dock statement had denied the incident but admitted that he had an illicit affair with PW2. He claimed that, since he had denied maintenance to PW2, she had quarrelled with him often and vowed that she would not allow the Appellant to live peacefully. Hence, he stated that PW2 had falsely implicated him in this murder case.

Argument

The learned Counsel for the Appellant strenuously argued that the initial statements given by PW1 and PW2 did not reveal the name of the Appellant. PW1 had given two statements on 29.02.2012 and 01.03.2012 and PW2 had given one statement on 29.02.2012. In their statements, they had not revealed the name of the Appellant. After the demise of the deceased on 09.03.2012, the police had recorded another statement from both PW1 and PW2 and in those statements both witnesses had revealed the name of the Appellant as the perpetrator. The Appellant was arrested on 09.03.2012. Therefore, the learned Counsel argued that this is a fabricated story against his client.

It was contended in the cross examination, that PW1 in the second statement stated that he could not identify the culprit due to the darkness. PW1 had not divulged the names of the people who had abducted the deceased to PW6 under whom he was working at that time.

PW2 in her 1st statement to police did not tell that the Appellant had assaulted the deceased using his hand and with a belt. She had also failed to state that she tried to give a call to the police. Further, she had failed to state to the police that the Appellant had taken the deceased towards the road by holding him. Therefore, the learned Counsel submitted to this court that the evidence given by PW1 and PW2 is tainted with ambiguities which had escaped the attention of the Learned High Court Judge.

The Learned Counsel next contended that the JMO had expressed an opinion that the fatal injury caused to the head could have happened due to falling on a rough surface. Although the deceased was transferred to several Hospitals, no evidence with regard to the injuries sustained by the deceased was led. Hence, the learned Counsel submitted that this has caused great prejudice to the Appellant.

The Learned High Court Judge in his judgement stated that the Appellant had come to the place of incident and inquired from the deceased as to what he was doing there and had slapped the deceased before he was loaded onto the three-wheeler, as seen in Page 624 of the brief.

Also, in the judgment at page 626 of the brief, the Learned High Court Judge stated that the Appellant had assaulted the deceased under provocation as the deceased had refused to go from the premises of PW2.

Considering the above pages of the judgment, the learned Counsel for the Appellant submits to this court as PW2 was Appellant's paramour, he would have been provoked over the visit of the deceased to PW2's house at that time. Therefore, he submits that this is an appropriate case to be considered under 297 of Penal Code on the basis of a sudden provocation.

The learned Additional Solicitor General in keeping with the highest traditions of the Attorney General's Department conceded that this is an appropriate case to be considered under grave and sudden provocation.

According to exception 1 of Section 294 of the Penal Code

“Culpable Homicide is not murder if the offender whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation, or causes the death of any other person by mistake or accident”

The explanation under this exception read as that:

“Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact”.

Although the counsel for the Appellant seeks relief for lesser culpability on the plea of grave and sudden provocation, upon perusal of the evidence led before the High Court, no evidence of sudden fight was elicited either from the evidence of the prosecution nor was the same suggested in the cross examination. According to Section 105 of the Evidence Ordinance, it is the responsibility of the Appellant to prove the existence of a general or special exception during the trial on a balance of probabilities. In the absence of such evidence, the Learned trial Judge should direct his mind to the circumstances and the fact that the Appellant is entitled to have the benefit of the lesser verdict.

In **The King v Bellana Vithanage Eddin** 41 NLR 345 the court held that:

"In a charge of murder, it is the duty of the judge to put to the jury the alternative of finding the accused guilty of culpable homicide not amounting to murder when there is any basis for such a finding in the evidence on record, although such defence was not raised nor relied upon by the accused".

In the case of **King vs. Albert Appuhamy** 41 NLR 505 it was held:

“Failure on the part of a prisoner or his Counsel to take up a certain line of defence does not relieve a Judge of the responsibility of putting to the jury such defence if it arises on the evidence.”

In the case of **The King v. Vidanalage Lanty** (1941) 42 NLR 317 it was held:

“There was evidence in this case upon which it was open to the jury to say that it came within exception 4 to section 294 of the Penal Code and that the appellant was guilty of culpable homicide not amounting to murder. No such plea, however, was put forward on his behalf. In the course of his charge the presiding Judge referred to this evidence as part of the defence story but not as evidence upon which a lesser verdict might possibly be based.

It was the duty of the presiding Judge to have so directed the jury and that in the circumstances the appellant was entitled to have the benefit of the lesser verdict.”

In the case of **Gamini v Attorney General** [2011] 1 SLR the court held that:

“Although the accused appellant in his defence did not take the defence of grave and sudden provocation, the trial judge must consider such a plea in favour of the accused appellant in it if emanates from the evidence of the prosecution.”

In the case of **Rathnayake Mudiyanseelage Karunaratne v. The Attorney General** CA 181/2009 decided 21 November 2011, it was held that:

“If the plea of grave and sudden provocation is available from the evidence of the prosecution itself, Court has a duty to consider such a plea even if the accused did not raise it.”

Analysing the evidence presented in this case it clearly demonstrates that the illicit relationship of the Appellant had with PW2 had resulted in this unfortunate incident. Although the Learned High Court Judge had briefly discussed the concept of sudden provocation in his judgment, he had not awarded the benefit to the Appellant under the said mitigatory plea.

Considering all the circumstances stressed before this court I conclude that this is an appropriate case to consider for the Appellant’s benefit, considering

his entitlement for a plea of grave and sudden provocation under Exception-1 to Section 294 of the Penal Code.

Hence, I set aside the death sentence and convict the Appellant for culpable homicide not amounting to murder under Section 297 of the Penal Code. I sentence the Appellant for 13 years rigorous imprisonment commencing from date of conviction namely 16/07/2025.

Subject to the above variation, I dismiss the appeal.

The Registrar is directed to send this judgment to the High Court of Embilipitiya along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL